

Pasture Land Nationalization Act, 1974

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Royal Seal and Date of Publication

2031.6.20

Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 This Act shall be deemed to have come into force from Jestha 15, 2065. 2066.10.7
2. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 12 of the year 2031

Act Made to Nationalize Pasture Land

Preamble: Whereas it is desirable to nationalize pasture land in order to maintain the convenience and economic interest of the general public,

Therefore, this Act is enacted by His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat. 1. Short Title, Extent, and Commencement: (1) This Act may be called the "Pasture Land Nationalization Act, 2031."

(2) This Act shall extend throughout Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force in the districts specified by the Government of Nepal from the date so specified As per the notice published in the Nepal Gazette on 2033.9.27, the Act is specified to come into force in Kavrepalanchok, Sindhupalchok, and Rasuwa districts from 2033.10.1.. 2. Definitions: Unless the subject or context otherwise requires, in this Act?

(a) "Pasture Land" means land which, whether registered in the Abkari (excise/thana) register or not, is used only for livestock grazing under any name such as pasture (Kharka), pasture-plot (Kharkachok), etc.

(b) "Registrant" means a person or persons who, in accordance with prevailing Nepal law, have registered pasture land in their own name or collectively with liability to pay land revenue or pasture fees to the Government of Nepal, and who by virtue of such registration have a right over the pasture land.

(c) "Land Revenue Office" means the Land Revenue Office where such office exists, and where it does not exist, the Land Administration Office. 3. Nationalization of Pasture Land: From the date of commencement of this Act, all pasture land within Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall be nationalized, and the ownership of such land shall vest in the Government of Nepal, and any right of ownership held by a registrant over such pasture land prior to the commencement of this Act shall be automatically extinguished. Provided that?

(a) If the land is within the ceiling prescribed by prevailing Nepal law, even if it was used only for grazing for private use, the registrant may retain it.

(b) Even after this Act comes into force, the Government of Nepal may, in accordance with prevailing laws, grant exemptions for the following purposes:

- (a) fruit farming,
- (b) animal husbandry,
- (c) herbal farming,
- (d) tea farming. 4.

Provision of Compensation: (1) For pasture land nationalized pursuant to Section 3, the Government of Nepal shall, upon the recommendation of a committee formed by rules, determine a fair amount of compensation for the registrant. Such committee shall also include the chairperson of the concerned Deleted by the Some Nepal Acts Amendment Act, 2072. local Village Executive or their representative. (2) The Land Revenue Office shall post a notice for the information of the concerned registrants informing them to come and receive the compensation amount under sub-section (1). (3) Within one year from the date of posting of the notice under sub-section (2), the registrant must submit an application to the concerned Land Revenue Office, attaching evidence of their title and possession, in order to receive compensation. Provided that if any person fails to submit an application even one year after the posting of the notice, no claim of such person for that compensation shall lie thereafter. (4) Upon necessary inquiry into the application received under sub-section (3), the Land Revenue Office shall pay compensation to the registrant at the rate of the revenue (tiro/damashi). Provided that if a question arises regarding the right to receive compensation or the amount of compensation, the Land Revenue Office shall pay compensation as determined by the court. 5. Management of Pasture Land: (1) The Government of Nepal shall cause a separate register of the pasture land nationalized under Section 3 to be maintained at the Land Revenue Office and shall entrust the protection and grazing of such land to the local Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality. Provided that this sub-section shall not be deemed to prevent the Government of Nepal, where pasture land lies within the boundary of more than one Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality, from entrusting it to more than one Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality. (2) The local Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality, having received pasture land under its responsibility pursuant to sub-section (1), shall protect and improve such land, but shall not use or cause such land to be used for any purpose other than grazing. 6. Grazing Fee to be Charged for Allowing Livestock to Graze: (1) The Amended by the Some Nepal Acts Amendment Act, 2072.

Rural Municipality shall, upon charging an annual grazing fee of no more than three rupees for each large animal (such as yaks, cows, buffaloes, horses, mules, etc.) and no more than one rupee for each small animal (such as goats, castrated goats, he-goats, sheep, hybrid sheep, etc.), allow the livestock of all persons, including those who have been grazing in such pasture from before, to graze. (2) The grazing fee collected under sub-section (1) shall be deposited into the Village Assembly Fund. 7. Power to Give Directions to the Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.: The Government of Nepal may, if it deems necessary, give necessary directions to the Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality for the protection, improvement, and grazing of pasture land, and it shall be the duty of such Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality to comply with such directions. 8. Power to Make Rules: The Government of Nepal may make rules for implementing the

objectives of this Act.